

Federal Constitution

NOTES

Art. 43

See Art. 57(1A).

Representatives, and in any other case he is a member either of that House or of the Senate.

(3) The Cabinet shall be collectively responsible to Parliament.

(4) If the Prime Minister ceases to command the confidence of the majority of the members of the House of Representatives, then, unless at his request the Yang di-Pertuan Agong dissolves Parliament, the Prime Minister shall tender the resignation of the Cabinet.

(5) Subject to Clause (4), Ministers other than the Prime Minister shall hold office during the pleasure of the Yang di-Pertuan Agong, unless the appointment of any Minister shall have been revoked by the Yang di-Pertuan Agong on the advice of the Prime Minister but any Minister may resign his office.

(6) Before a Minister exercises the functions of his office he shall take and subscribe in the presence of the Yang di-Pertuan Agong the oath of office and allegiance and the oath of secrecy set out in the Sixth Schedule.

(7) Notwithstanding anything in this Article, a person who is a citizen by naturalization or by registration under Article 17* shall not be appointed Prime Minister.

(8) (*Repealed*).

(9) Parliament shall by law make provision for the remuneration of members of the Cabinet.

Deputy Ministers

43A. (1) The Yang di-Pertuan Agong may on the advice of the Prime Minister appoint Deputy Ministers from among the members of either House of Parliament; but if an appointment is made while Parliament is dissolved a person who was a member of the last House of Representatives may be appointed but shall not hold office after the beginning of the next session of Parliament unless he is a member either of that House or of the Senate.

(2) Deputy Ministers shall assist Ministers in the discharge of their duties and functions, and for such purpose shall have all the powers of Ministers.

*NOTE—This Article has been repealed by section 5 of the Constitution (Amendment) Act 1962 [Act 14/1962] w.e.f. 1 July 1963—see L.N. 105/1963. See also notes on Article 17.

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Art. 43—(cont.)

Clause (5)

a. The words “unless the appointment of any Minister shall have been revoked by the Yang di-Pertuan Agong on the advice of the Prime Minister” were inserted by Act 10/1960, section 5, in force from 31-05-1960.

b. *See* Art. 43A(3).

Clauses (6) & (8): See Art. 43A(3).

Clause (8): Repealed by Act A857, section 2, in force from 20-08-1993.

Clause (9): See Members of Parliament (Remuneration) Act 1980 [Act 237].

Art. 43A

1. Added by Act 10/1960, section 6, in force from 31-05-1960.

2. *See* Art. 57(1A).

Clauses (1), (2), (3) & (4)

The words “Deputy Ministers” substituted for the words “Assistant Ministers” by Act A31, section 10, in force from 24-03-1971.

Clause (2)

The words “, and for such purpose shall have all the powers of Ministers” were inserted by Act A566, section 3, in force from 16-12-1983.

Clause (3)

The words “Clauses (5) and (6)” substituted for the words “Clauses (5), (6) and (8)” by Act A885, section 5, in force from 24-06-1994.

Clause (4): See Members of Parliament (Remuneration) Act 1980 [Act 237].

(3) The provisions of Clauses (5) and (6) of Article 43 shall apply to Deputy Ministers as they apply to Ministers.

(4) Parliament shall by law make provision for the remuneration of Deputy Ministers.

Parliamentary Secretaries

43B. (1) The Prime Minister may appoint Parliamentary Secretaries from among the members of either House of Parliament; but if an appointment is made while Parliament is dissolved, a person who was a member of the last House of Representatives may be appointed, but shall not hold office after the beginning of the next session of Parliament unless he is a member either of that House or of the Senate.

(2) Parliamentary Secretaries shall assist Ministers and Deputy Ministers in the discharge of their duties and functions, and for such purpose shall have all the powers of Ministers and Deputy Ministers.

(3) A Parliamentary Secretary may at any time resign his office, and his appointment as such may be determined at any time by the Prime Minister.

(4) Before a Parliamentary Secretary exercises the functions of his office he shall take and subscribe in the presence of the Prime Minister the oath of secrecy set out in the Sixth Schedule.

(5) Parliament shall by law make provision for the remuneration of Parliamentary Secretaries.

Political Secretaries

43C. (1) The Prime Minister may appoint such number of persons as he may think fit to be Political Secretaries.

(2) A person appointed as a Political Secretary by virtue of this Article—

- (a) need not be a member of either House of Parliament;
- (b) may resign his office at any time;

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Art. 43B

1. Added by Act 19/1964, subsection 5(1), in force from 16-09-1963.

2. *See* Art. 57(1A).

Clause (2)

a. The words “Deputy Ministers” substituted for the words “Assistant Ministers” by Act A31, section 10, in force from 24-03-1971.

b. The words “, and for such purpose shall have all the powers of Ministers and Deputy Ministers” were inserted by Act A566, section 4, in force from 16-12-1983.

Clause (4): See Art. 43c(3).

Clause (5): See Members of Parliament (Remuneration) Act 1980 [*Act 237*].

Art. 43c

Added by Act 19/1964, subsection 5(1), in force from 16-09-1963.

- (c) subject to paragraph (b), shall continue in office until such time as his appointment is determined by the Prime Minister.

(3) The provisions of Clause (4) of Article 43B shall apply to Political Secretaries as they apply to Parliamentary Secretaries.

(4) The duties and functions of Political Secretaries, and their remuneration, shall be determined by the Cabinet.

Chapter 4—Federal Legislature

Constitution of Parliament

44. The legislative authority of the Federation shall be vested in a Parliament, which shall consist of the Yang di-Pertuan Agong and two Majlis (Houses of Parliament) to be known as the Dewan Negara (Senate) and the Dewan Rakyat (House of Representatives).

Composition of Senate

45. (1) Subject to Clause (4), the Senate shall consist of elected and appointed members as follows:

- (a) two members for each State shall be elected in accordance with the Seventh Schedule; and
- (aa) two members for the Federal Territory of Kuala Lumpur, one member for the Federal Territory of Labuan and one member for the Federal Territory of Putrajaya shall be appointed by the Yang di-Pertuan Agong; and
- (b) forty members shall be appointed by the Yang di-Pertuan Agong.

(2) The members to be appointed by the Yang di-Pertuan Agong shall be persons who in his opinion have rendered distinguished public service or have achieved distinction in the professions, commerce, industry, agriculture, cultural activities or social service or are representative of racial minorities or are capable of representing the interests of aborigines.

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Art. 45

Clause (1)(aa)

- a. This paragraph was inserted by Act A442, paragraph 2(1)(a), in force from 31-12-1978.
- b. Subsequently it was substituted by Act A585, section 13, in force from 16-04-1984 and again by Act A1095, section 15, in force from 01-02-2001 to enable one member of the Senate to be appointed to represent the Federal Territory of Putrajaya. The original paragraph (aa) read as follows:

“(aa) two members for the Federal Territory shall be appointed by the Yang di-Pertuan Agong; and”.

Clause (1)(b)

Originally this paragraph provided for sixteen members to be appointed by the Yang di-Pertuan Agong. Act 26/1963, section 8, in force from 16-09-1963, amended this to twenty-two. Act 19/1964, section 6, in force from 30-07-1964, further amended it to thirty-two; and subsequently amended by substituting the word “forty” for the words “thirty-two” by Act A442, paragraph 2(1)(b), in force from 31-12-1978.

(3) The term of office of a member of the Senate shall be three years and shall not be affected by a dissolution of Parliament.

(3A) A member of the Senate shall not hold office for more than two terms either continuously or otherwise:

Provided that where a person who has already completed two or more terms of office as a member of the Senate is immediately before the coming into force of this Clause a member of the Senate, he may continue to serve as such member for the remainder of his term.

(4) Parliament may by law—

- (a) increase to three the number of members to be elected for each State;
- (b) provide that the members to be elected for each State shall be so elected by the direct vote of the electors of that State;
- (c) decrease the number of appointed members or abolish appointed members.

Composition of House of Representatives

46. (1) The House of Representatives shall consist of two hundred and twenty-two elected members.

(2) There shall be—

- (a) two hundred and nine members from the States in Malaysia as follows:
 - (i) twenty-six members from Johore;
 - (ii) fifteen members from Kedah;
 - (iii) fourteen members from Kelantan;
 - (iv) six members from Malacca;
 - (v) eight members from Negeri Sembilan;
 - (vi) fourteen members from Pahang;
 - (vii) thirteen members from Penang;
 - (viii) twenty-four members from Perak;

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Art. 45 (*cont.*)

Clause (3)

- a. Amended by Act A442, paragraph 2(1)(c), in force from 31-12-1978, by substituting the word “three” for the word “six”.
- b. Subsequently this Clause was amended by Act A1130, section 4, in force from 28-09-2001, by deleting the words “, subject to the provisions of the Seventh Schedule,”.

Clause (3A): Added by Act A514, section 3, in force from 15-05-1981.

Clause (4): See Art. 120.

Art. 46

1. This Article as it stood on Merdeka Day read as follows:

“46. (1) The House of Representatives shall consist of one hundred elected members except that the first House of Representatives shall consist of one hundred and four.

(2) After the completion of the first census to be taken after Merdeka Day Parliament may by law alter the number of members of the House of Representatives.”.

2. This Article was amended by Act 14/1962, section 14, in force from 21-06-1962, by substituting the words “one hundred and four elected members” for the words “one hundred elected members except that the first House of Representatives shall consist of one hundred and four” in Clause (1), and repealed Clause (2).

3. This Article was substituted by Act 26/1963, section 9, in force from 16-09-1963, which read as follows:

“46. (1) The House of Representatives shall consist of one hundred and fifty-nine elected members.

(2) There shall be—

- (a) one hundred and four members from the States of Malaya;
- (b) sixteen members from Sabah;
- (c) twenty-four members from Sarawak;
- (d) fifteen members from Singapore.”.

4. This Article was amended by Act 59/1966, section 2, in force from 09-08-1965, by substituting the word “forty-four” for the word “fifty-nine” in Clause (1) and deleted paragraph (d) of Clause (2).

5. This Article was again amended by Act A206, section 12, in force from 23-08-1973, by the substitution of the whole Article which read as follows:

“46. (1) The House of Representatives shall consist of one hundred and fifty-four elected members.

(2) There shall be—

- (a) one hundred and forty-nine members from the States in Malaysia as follows:
 - (i) sixteen members from Johore;
 - (ii) thirteen members from Kedah;
 - (iii) twelve members from Kelantan;
 - (iv) four members from Malacca;
 - (v) six members from Negeri Sembilan;
 - (vi) eight members from Pahang;
 - (vii) nine members from Penang;

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Art. 46—(cont.)

- (viii) twenty-one members from Perak;
- (xi) two members from Perlis;
- (x) sixteen members from Sabah;
- (xi) twenty-four members from Sarawak;
- (xii) eleven members from Selangor;
- (xiii) seven members from Terengganu; and
- (b) five members from the Federal Territory.”.

6. The present Article was substituted by Act A566, section 5, in force from 16-12-1983. However, the substitution shall not affect the composition of the House of Representatives or any elections to that House until the dissolution of Parliament occurring on or after 31-12-1984—*See* P.U. (A) 475 and 476/1984.

Clause (1)

Amended by Act A585, paragraph 14(a), in force from 16-04-1984, by substituting the word “seventy-seven” for the word “seventy-six”.

Clause (2)

Amended by Act A585, paragraph 14(b), in force from 16-04-1984, by substituting for paragraph (b) the following new paragraph (b):

- “(b) eight members from the Federal Territories of Kuala Lumpur and Labuan as follows—
- (i) seven members from the Federal Territory of Kuala Lumpur;
- (ii) one member from the Federal Territory of Labuan.”.

Clause (1)

Amended by Act A631, section 2, in force from 24-02-1986, by substituting the word “eighty” for the word “seventy-seven”.

Clause (2)

Amended by Act A631, section 2, in force from 24-02-1986, by substituting the word “seventy-two” for the word “sixty-nine” in paragraph (a) and the word “twenty-seven” for the word “twenty-four” in subparagraph (xi) of paragraph (a).

Note:

This Article, as amended, shall not affect the composition of the House of Representatives or any election to that House until the dissolution of Parliament—*See* Art. 57(1A).

Clause (1)

Amended by Act A837, section 2, in force from 20-11-1992, by substituting the word “ninety-two” for the word “eighty”.

Clause (2)

Amended by Act A837, section 2, in force from 20-11-1992—

- (i) by substituting the word “eighty-one” for the word “seventy-two” in paragraph (a);
- (ii) by substituting the word “twenty” for the word “eighteen” in subparagraph (a)(i);
- (iii) by substituting the word “fifteen” for the word “fourteen” in subparagraph (a)(ii);
- (iv) by substituting the word “fourteen” for the word “thirteen” in subparagraph (a)(iii);
- (v) by substituting the word “eleven” for the word “ten” in subparagraph (a)(vi);
- (vi) by substituting the word “three” for the word “two” in subparagraph (a)(ix);
- (vii) by substituting the word “seventeen” for the word “fourteen” in subparagraph (a)(xii);
- (viii) by substituting the word “eleven” for the word “eight” in paragraph (b); and